

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUOR054184: ERIKA CERVANTES VS JUAN MANUEL CERVANTES, ET AL.

Consolidated for all Purposes with

**2026CLUD062672 JUAN MANUEL CERVANTES GUTIERREZ V. ERIKA
CERVANTES, ET AL.**

08/17/2026 in Department 20

Motion for Leave to File Cross Complaint by Juan Manuel Cervantes

The morning calendar in courtroom 20 will normally begin at 8:30 a.m. Please arrive for your hearing no later than 8:20 a.m. The door will be opened before the calendar is called.

For Zoom appearances, all counsel appearing by Zoom must follow the instructions and procedures for Courtroom 20 on the Ventura Superior Court website. IF YOU DO NOT DO SO, YOU WILL NOT BE PERMITTED TO APPEAR BY ZOOM AT THE HEARING.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling, you may email Courtroom20@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending an email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d), and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Defendant Juan Manuel Cervantes' ("Cervantes") Motion for Leave to File Cross-Complaint

Tentative: Cervantes' unopposed Motion for Leave to File Cross-Complaint is GRANTED. Cervantes shall file and serve his proposed cross-complaint attached to his motion on all parties on or before September 1, 2026.

"The legislative mandate is clear. A policy of liberal construction of section 426.50 to avoid forfeiture of causes of action is imposed on the trial court. A motion to file a cross-complaint at any time during the course of the action must be granted unless bad faith of the moving party is demonstrated where forfeiture would otherwise result. Factors such as oversight, inadvertence, neglect, mistake or other cause, are insufficient grounds to deny the motion unless accompanied by bad faith." (*Silver Organizations Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 98-99).

There is no evidence of bad faith. The Court finds that the interests of justice will be served, and good cause exists to grant the motion and allow the filing of the proposed cross-complaint pursuant to Code of Civil Procedure sections 426.50, 428.10 and 428.50.

Counsel for Cervantes shall give notice.